

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
TYREIK GILFORD

Index No.
Purchased 6-6-14

Plaintiff

Plaintiffs designate New York
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK
and POLICE OFFICER JON WESTENDORF
(Tax # 941256)**

SUMMONS

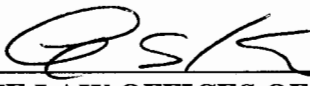
Defendants.

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
June 6, 2014



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

POLICE OFFICER JON WESTENDORF (Tax # 941256)

New York City Police Department

1 Police Plaza

New York, NY 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X **Index No.** _____
TYREIK GILFORD

VERIFIED COMPLAINT

Plaintiff

- against -

**THE CITY OF NEW YORK and
POLICE OFFICER JON WESTENDORF
(Tax # 941256)**

-----X

Plaintiff, TYREIK GILFORD, by his attorneys, THE LAW OFFICES OF
ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants,
respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff TYREIK GILFORD was a resident of New York County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant JON WESTENDORF (Tax # 941256) ("P.O. WESTENDORF") was and is a police officer employed by Defendants.

PROCEDURAL POSTURE

5. Plaintiff TYREIK GILFORD served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
6. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust these claims.
7. A 50-H hearing has been held for Plaintiff.
8. This action has been commenced within one year and ninety days after the cause of actions for Plaintiff accrued.
9. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

10. Paragraphs 1-10 are incorporated by reference as fully set forth herein.
11. On March 10, 2013 at approximately 1:00 a.m., in the vicinity of 132nd Street between 7th and 8th Avenue in New York County, defendants, their agents, servants and employees, in particular defendant P.O. WESTENDORF, approached Plaintiff and handcuffed Plaintiff.
12. Defendants, including but not limited to P.O. WESTENDORF, removed Plaintiff to a Police Precinct and New York County Central Booking, where Plaintiff was searched, photographed and forced to remain in a jail cell.
13. On or about March 11, 2013, Plaintiff was released from Central Booking

without appearing before a Judge and without being charged with any crimes or offenses.

AS AND FOR A FIRST CAUSE OF ACTION FOR PLAINTIFF

TYREIK GILFORD: FALSE IMPRISONMENT

14. Paragraphs 1-13 are incorporated by reference as fully set forth herein.

15. On March 10, 2013 at approximately 1:00 a.m., in the vicinity of 132nd Street between 7th and 8th Avenue in New York County, defendants, their agents, servants and employees, in particular defendant P.O. WESTENDORF, without just cause or provocation and with reckless and negligent disregard for the truth, intentionally and falsely accused Plaintiff of having committed the crime of Criminal Possession of a Controlled Substance.

16. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 11-13 and he did not consent to that arrest or confinement. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

17. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty. Plaintiff also suffered emotional distress, embarrassment, humiliation and fear and intimidation for Plaintiff's safety.

18. That by reason of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A SECOND CAUSE OF ACTION FOR PLAINTIFF

TYREIK GILFORD: ASSAULT

19. Paragraphs 1-18 are incorporated by reference as though fully set forth herein.

20. P.O. WESTENDORF, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact.

21. As a result of being assaulted by P.O. WESTENDORF, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

AS AND FOR A THIRD CAUSE OF ACTION FOR PLAINTIFF

TYREIK GILFORD: BATTERY

22. Paragraphs 1-21 are incorporated by reference as though fully set forth herein.

23. When P.O. WESTENDORF grabbed Plaintiff and arrested Plaintiff, he subjected Plaintiff to a harmful or offensive bodily contact. P.O. WESTENDORF intended to make that contact without the consent of Plaintiff.

24. As a result of being battered by P.O. WESTENDORF, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have

jurisdiction, together with attorneys' fees and costs for bringing this case, and
punitive damages.

Dated: Bronx, NY
June 6, 2014

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff

888 Grand Concourse, Suite 1H

Bronx, NY 10451

212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X Index No. _____

TYREIK GILFORD

VERIFICATION

Plaintiff

- against -

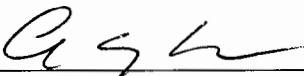
**THE CITY OF NEW YORK and
POLICE OFFICER JON WESTENDORF
(Tax # 941256)**

-----X

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff **TYREIK GILFORD** in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing Statements are true, under the penalties of perjury.

Dated: Bronx, NY
June 6, 2014



ELLIOT S. KAY